

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Conway	Team: Squad #15	CCRB Case #: 201505084	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/19/2015 10:45 PM	Location of Incident: Myrtle Avenue and Summerfield Street	18 Mo. SOL 12/19/2016	Precinct: 104		
Date/Time CV Reported Sat, 06/20/2015 12:28 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 06/20/2015 12:28 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM James Dick	15402	952682	104 PCT
2. POM Jack Dagnese	05139	948842	104 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM James Dick	Abuse: PO James Dick frisked § 87(2)(b)	A . Substantiated
B . POM Jack Dagnese	Abuse: PO Jack Dagnese frisked § 87(2)(b)	B . Substantiated
C . POM Jack Dagnese	Abuse: PO Jack Dagnese searched § 87(2)(b)	C . Unsubstantiated
D . POM James Dick	Abuse: PO James Dick questioned § 87(2)(b) and § 87(2)(b)	D . Unsubstantiated
E . POM Jack Dagnese	Abuse: PO Jack Dagnese searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Unsubstantiated
F . POM Jack Dagnese	Abuse: PO Jack Dagnese searched § 87(2)(b)	F . Unsubstantiated
G . POM Jack Dagnese	Abuse: PO Jack Dagnese refused to provide his name and shield number to § 87(2)(b)	G . Unsubstantiated

Case Summary

On June 20, 2015, § 87(2)(b) filed this complaint with the CCRB via the online website.

On June 19, 2015, § 87(2)(b) was driving in his car with his friend § 87(2)(b) in the vicinity of Myrtle Avenue and Summerfield Street when he was pulled over by PO James Dick and PO Jack Dagnese of the 104th Precinct. § 87(2)(b) recognized and identified PO Dick from a prior interaction two weeks earlier. The officers asked the men to exit their car, at which time PO Dick frisked § 87(2)(b) (**Allegation A**) and PO Dagnese frisked § 87(2)(b) (**Allegation B**). § 87(2)(b) also alleged that he was searched by PO Dagnese (**Allegation C**). While PO Dick questioned the men about the smell of marijuana emanating from the vehicle (**Allegation D**), PO Dagnese allegedly searched inside the vehicle's center console, glove compartment, trunk, and hood (**Allegation E**). § 87(2)(b) then alleged that PO Dagnese searched him by asking him to take his shoes off (**Allegation F**). At the end of the interaction, § 87(2)(b) alleged that PO Dagnese refused to provide his name and shield upon request (**Allegation G**).

Mediation, Civil and Criminal Histories

- § 87(2)(b)
- A FOIL request returned by the Office of the New York City Comptroller on August 19, 2015, indicates that neither § 87(2)(b) nor § 87(2)(b) have filed a notice of claim in regards to this case.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has filed the following complaints:
 - § 87(2)(b)
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- § 87(2)(b) has filed the following complaints:
 - § 87(2)(b)
 -
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- This case, along with the other case filed by § 87(2)(b) (§ 87(2)(b)) are the first complaints filed against PO Dick in his one-year tenure with the New York City Police Department.

- PO Dagnese has no substantiated complaints filed against him in his five-year tenure with the New York City Police Department, § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

Allegation A—Abuse of Authority: PO James Dick frisked § 87(2)(b)

Allegation B—Abuse of Authority: PO Jack Dagnese frisked § 87(2)(b)

As the officers approached the vehicle, § 87(2)(b) pulled out (or attempted to pull out) his wallet from his back pocket in expectation of being asked for his identification. Upon being asked to step out of the car, it is undisputed that each officers frisked a passenger. PO Dick frisked § 87(2)(b)'s waistband, and PO Dagnese frisked § 87(2)(b)'s waistband § 87(2)(b) § 87(2)(b)'s and § 87(2)(b)'s statements enclosed in 01 and 02 Board Review).

PO Dick stated (encl. 03 Board Review) that he frisked § 87(2)(b)'s waistband “immediately” upon his exiting the vehicle based on “reasonable suspicion” of possession of marijuana. PO Dick did not see any bulges or furtive movements, and there was no other factor behind the frisk. PO Dick expressed the belief that a frisk is permissible during a car stop, as any individual might be armed with a weapon. PO Dick did not have a specific belief that § 87(2)(b) was armed with a weapon.

PO Dagnese described (encl. 04 Board Review) witnessing § 87(2)(b) furtively reach towards the glove compartment and then towards his back right pocket. PO Dick also witnessed this, though he provided a slightly different timeline for when these furtive movements took place. Neither officer could describe if he had anything in his hand, or if there were any bulges on his person, or if he withdrew or placed anything in or from his pocket. As soon as § 87(2)(b) stepped out, PO Dagnese frisked § 87(2)(b)'s back right pocket “immediately” and felt the outline of § 87(2)(b)'s wallet. As the hard item felt like a wallet and did not feel like a weapon, PO Dagnese ended the frisk.

PO Dagnese described the frisk as being based on the furtive movement, the smell of marijuana, and the intersection being a marijuana-prone location. PO Dagnese stated there was no further factor behind this frisk, and expressed the believe that a frisk is permissible for reasonable suspicion of “any misdemeanor or felony.”

Neither officer observed the other frisk their respective civilian.

People v. De Bour, 40 N.Y.2d 210; 352 N.E.2d 562 (1976) (encl. 05 Board Review) sets up a four-level system for civilian interaction, escalating from (1) a request for information, (2) a common-law inquiry, (3) stop and frisk for reasonable suspicion for weapons, and (4) arrest. A frisk must be based on reasonable suspicion that the individual being frisked is armed with a weapon.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is recommended that **Allegations A and B** be closed as **substantiated**.

Allegation C—Abuse of Authority: PO Jack Dagnese searched § 87(2)(b)

§ 87(2)(b) alleged that as PO Dagnese frisked him, he put his hands into his pockets. § 87(2)(b) denied that PO Dagnese removed anything.

PO Dagnese denied that he put his hands into § 87(2)(b)'s pockets during the frisk.

Neither PO Dick nor § 87(2)(b) observed the details of PO Dagnese's frisk of § 87(2)(b) including whether pockets were entered, due to being on the other side of the car and their view being obstructed.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D—Abuse of Authority: PO James Dick questioned § 87(2)(b) **and**

§ 87(2)(b)

It is undisputed that there was the potent smell of marijuana on the scene. After being removed from the vehicle, PO Dick questioned both § 87(2)(b) and § 87(2)(b) about the source of the marijuana. § 87(2)(b) and § 87(2)(b) denied that there was any marijuana on their persons or in their car.

Both civilians and officers affirmed that there was a strong smell of marijuana on scene, but accused the other party of providing the smell. The officers consistently testified to the marijuana smell emanating from § 87(2)(b)'s car, growing stronger as they approached, whereas § 87(2)(b) and § 87(2)(b) testified that the smell of marijuana was coming from the officers' car engine. Both § 87(2)(b) and § 87(2)(b) suggested that the officers were generating the smell of marijuana themselves as a pretext to conduct car stops; § 87(2)(b) alleged that PO Dick's breath smelled like marijuana and that his eyes were watery. § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E—Abuse of Authority: PO Jack Dagnese searched the vehicle in which

§ 87(2)(b) **and** § 87(2)(b) **were occupants.**

It is undisputed that PO Dagnese entered and searched the interior of § 87(2)(b)'s car. PO Dagnese looked under the seat and on the floorboards, where PO Dagnese alleged he observed flakes of marijuana.

§ 87(2)(b) further alleged that PO Dagnese opened the hood, the glove compartment, and asked him to open the trunk (though he did not enter the trunk). PO Dagnese denied this more thorough search, but did state that § 87(2)(b) voluntarily opened the trunk and PO Dagnese glanced inside to observe it was empty.

PO Dagnese did not base his rationale to search off any suspicion of a weapon or reachable areas, but instead based on the observation marijuana on the floor of the car. PO

Dagnese described green flakes of marijuana emanating the smell of marijuana on the floor of the car, which he recognized via his training and experience as a police officer. PO Dagnese did not know if he himself opened the door or if § 87(2)(b) left the door open when he exited, but he did confirm he entered the car to further inspect the marijuana on the ground.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

Allegation F—Abuse of Authority: PO Jack Dagnese searched § 87(2)(b)

After searching the vehicle and as the marijuana scent persisted, PO Dagnese asked if the marijuana was coming from § 87(2)(b) § 87(2)(b) then took off his shoes and socks and stood barefoot in the street – he alleged that PO Dagnese ordered him to take off his shoes and socks.

PO Dagnese denied that he gave such an order, and stated that § 87(2)(b) voluntarily unshod himself to show PO Dagnese that he was hiding nothing. PO Dagnese expressed that he wished that § 87(2)(b) had not taken off his shoes and socks.

PO Dick did not recall § 87(2)(b) taking off his shoes and socks; § 87(2)(b)'s testimony was essentially identical to § 87(2)(b)'s.

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation F** be closed as **unsubstantiated**.

Allegation G—Abuse of Authority: PO Jack Dagnese refused to provide his name and shield number to § 87(2)(b)

As the incident ended, § 87(2)(b) asked PO Dagnese for his name and shield number. § 87(2)(b) § 87(2)(b) alleged that in response, PO Dagnese mumbled something quickly, said “I told you, I told you,” and left the scene in his car as § 87(2)(b) asked him to repeat what he had said.

PO Dagnese testified that § 87(2)(b) did indeed ask for his name and shield number, which he provided and which § 87(2)(b) wrote down.

PO Dick and § 87(2)(b) did not corroborate this conversation taking place. PO Dick

Patrol Guide procedure 203-09 (encl. 06 Board Review) mandates that officers provide their name and shield upon request, and allow ample time to note this information.

§ 87(2)(g)

It is therefore recommended that **Allegation G** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date